

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN PERU

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Peru, grounded in Peruvian law and documented campaigns

***A note on terms.** Important terms are shown in **bold** the first time they appear, and each is defined in parentheses right where you first meet it — no flipping to the back required.*

TABLE OF CONTENTS

1. **INTRODUCTION & FRAMEWORK** — Why this matters, how this works, what to realistically expect
 2. **HOW THE SYSTEM WORKS** — Who decides, how a decision is made, and the words you'll need
 3. **QUICK REFERENCE: SUCCESS RATES** — Effectiveness by step (the full visualization follows the five steps)
 4. **STEP 1: TARGET IDENTIFICATION** — What you're fighting, who controls it, when the decision is final
 5. **STEP 2: DOCUMENTATION** — How to prove harm (three documentation layers)
 6. **STEP 3: BUILDING LOCAL OPPOSITION** — How to organize (Foundation → Public Launch → Coalition → Escalation)
 7. **STEP 4: LEGAL CHALLENGES** — How to use Peruvian regulators and courts (participation, consulta previa, amparo)
 8. **STEP 5: MEDIA STRATEGY** — How to generate coverage (journalist relationships, newsworthiness, measurement)
 9. **EMAILS & LETTERS** — Ready-to-use messages communities can copy and send
 10. **WHEN THE SYSTEM IS TILTED** — When opposition faces systemic barriers (honest mechanics and assessment)
 11. **WHEN IT'S ACTUAL CORRUPTION** — Spotting, documenting, and exposing genuine misconduct
 12. **INTEGRATION & TIMELINE** — How all five steps work together over a 12-month campaign
 13. **FINAL ASSESSMENT** — Realistic outcomes, why even partial wins matter, when to reassess
-

INTRODUCTION & FRAMEWORK

Why This Matters

Community action directly determines project outcomes in Peru. Projects that clear every economic and political hurdle still die when opposition is organized, documented, and — above all — when it exposes the gap between what the law requires and what the state and the proponent actually did. The record of the last fifteen years is unambiguous: the \$4.8-billion **Conga** gold project was suspended indefinitely in 2012 after regional mobilization in Cajamarca; the **Tía María** copper mine in the Tambo Valley has been stopped repeatedly since 2011 — its first environmental study was withdrawn after an independent UNOPS review shredded it; the **Santa Ana** silver project's licence was revoked in 2011 after sustained protest in Puno; and **Río Blanco** in Piura has been stalled for two decades after communities voted it down in local consultations.

But most communities don't know HOW to make opposition effective. They protest, then give up. They assume "the government will stop it" without building public pressure. They generate media coverage without a strategy. They organize people and then lose them to burnout after four months — or to criminal charges filed against their leaders.

This guide shows what actually works — in the Peruvian system.

If You're New to This — Don't Be Shy

Nobody is born knowing what an EIA-d is. The farmers of the Tambo Valley weren't regulatory experts when Tía María was announced; Cajamarca's ronderos didn't start out reading water balances. They learned it — assembly by assembly, observation by observation — because the thing at stake was theirs. That is the only qualification this work requires.

So if this is your first fight: don't worry, and don't be shy. You are allowed to file observations, demand documents, call reporters, and pack an audiencia. The law's participation windows exist for you, not for specialists. You will make

mistakes; every winning campaign did. Start small — one conversation, one document request, one meeting — and let the guide carry you from there. You want it? Go and get it.

The Strategic Framework

Successful opposition campaigns follow the same basic pattern:

```
STEP 1: TARGET IDENTIFICATION
↓
STEP 2: DOCUMENTATION (proof of harm)
↓
STEP 3: LOCAL OPPOSITION BUILD (organized community)
↓
STEP 4: LEGAL CHALLENGES (regulatory / court pressure)
↓
STEP 5: MEDIA STRATEGY (public visibility)

These operate SIMULTANEOUSLY (not sequentially)
Each step amplifies the others
Multi-tactic pressure compounds toward victory
```

The strongest legal lever: running through all five steps is the single most powerful legal lever in the country — the right of indigenous and original peoples to **prior consultation (consulta previa)** under **Law 29785** and **ILO Convention 169**, which in Peru has the rank of a human-rights treaty (Step 4). Where a measure affects the collective rights of an indigenous or original people and consultation was skipped or done defectively, courts — including the Constitutional Tribunal — have held the state to it, and the defect can void the approving act. No community campaign in Peru should be planned without understanding it.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Before you invest time, money, and emotional energy, understand this:

First, a definition. This guide calls it a **system tilted toward approval** (sometimes called *regulatory capture* or *institutional bias*). It does not mean anything illegal. It means the bodies that decide on a project lean toward approving it — because they depend on the industry's money or jobs, rely on the proponent's own information, or face strong political pressure to say yes.

In Peruvian development decisions, systemic bias is real and documented — a national budget and subnational governments dependent on the **canon minero** (mining tax transfers), mining concessions granted by INGEMMET over community land with no up-front consultation, environmental studies funded and written by the proponent, “paquetazo” laws that at one point slashed the environmental regulator's sanctioning power, **police who can legally contract their services to extractive companies**, and a persistent pattern of criminalizing protest leaders.

When these factors are present, opposition becomes harder. It does not become impossible. It becomes more expensive, takes longer, and has a lower probability of stopping a project outright — but it still routinely wins delays, modifications, buffers, monitoring, and funded oversight. And in Peru the record shows something more: sustained, organized territorial opposition has killed several of the biggest projects in the country's history outright.

This is covered in Section 9. Read it before committing resources — including its honest treatment of the physical risks Peruvian land defenders face.

HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

If you've never dealt with how projects get approved, read this section first. It explains, in plain terms, who holds power over a development in Peru, how a decision gets made, why the money so often points toward “yes,” and the handful of words you'll need. Every term is defined here on first use. The rest of the guide assumes you know this map.

The levels of government — and what each one controls

Peru divides power over land and development among several levels, and — critically — the rights of campesino and native communities run through all of them. Which body decides depends on what is being built and where.

- **The municipality** (district or provincial, run by an elected **alcalde** and council) — the most local tier. It controls **land-use zoning (zonificación)**, urban expansion plans, construction licences, and business operating licences (**licencia de funcionamiento**). Most housing, commercial, and local land-use fights are decided here — and municipal land-use powers have been used defensively (declaring watersheds protected zones, refusing licences).

- **The regional government (GORE)** — each of Peru's 25 regions has an elected governor and council. Regions approve the environmental studies of **small-scale and artisanal mining**, run their own environmental enforcement offices (**EFAs regionales**), lead **territorial planning (ordenamiento territorial)**, and manage regional infrastructure. Several regional governments have passed ordinances protecting headwaters — a recurring flashpoint with the national government.
- **The national government** — the decisive level for large projects. The **Ministry of Energy and Mines (MINEM)**, the Ministry of Transport, and other sector ministries grant the operating authorizations in their sectors; **INGEMMET** grants **mining concessions**; **Senace** (the National Environmental Certification Service, attached to the Ministry of the Environment — *gob.pe/senace*) reviews and approves the **detailed environmental impact studies (EIA-d)** of the largest mining, energy, hydrocarbon, transport, agriculture and waste projects through its **EVA** single window; **MINAM** (Ministry of the Environment) is the system's rector; **OEFA** (*gob.pe/oeffa*) enforces environmental obligations; **ANA** (National Water Authority) licenses water use; **SERNANP** must issue a compatibility opinion for anything touching a protected natural area; **SERFOR** governs forests; and the **Ministry of Culture** maintains the official Database of Indigenous Peoples (**BDPI** — *bdpi.cultura.gob.pe*) and oversees **prior consultation**.
- **Campesino and native communities — rights-holders, not stakeholders.** Articles 88-89 of Peru's Constitution recognize campesino and native communities as legal persons with autonomous organization and communal land that is **imprescriptible**; Article 149 gives communities and **rondas campesinas** jurisdictional functions under customary law; and **ILO Convention 169**, ratified by Peru, together with **Law 29785**, obliges the state to consult indigenous and original peoples before measures that affect their collective rights. This runs across municipal, regional, and national decisions, and it is often the single most powerful factor in a project's fate (Step 4 explains it fully).

So which level decides *your* project? - A housing development, a shopping centre, a local land-use change → the **municipality**. - A large mine, a smelter, a dam, an oil/gas block, a big highway → the **national level** (Senace certification + sector-ministry authorizations + ANA water licences), with the concession itself from INGEMMET. - Small-scale and artisanal mining → the **regional government**. - Anything on or affecting communal land → also requires the **community's own assembly decision** (a supermajority for land disposition), and, where collective rights of indigenous or original peoples are affected, **consulta previa**.

How a decision is actually made — the journey of an application

1. **Concession.** For mining, INGEMMET grants a **concession** over the subsoil — often over community land, and without consultation at this stage. A concession alone gives **no right to start work**: it is a warning light, sometimes years ahead of machinery.
2. **Environmental certification.** The project is classified into one of three tiers — **DIA** (light impacts), **EIA-sd** (moderate), **EIA-d** (significant) — and the proponent files the corresponding study. For an EIA-d, Senace runs the review through **EVA**, with mandatory **participación ciudadana**: informational workshops (**talleres**) and a **public hearing (audiencia pública)**, plus a window to file written **observations** the evaluator must answer one by one.
3. **Consulta previa.** Where a state measure (an authorization, a plan, a regulation) may affect the collective rights of an indigenous or original people, the responsible entity must run a formal consultation process with the affected people — identification, publicity, information, internal evaluation, dialogue, decision — before adopting it.
4. **Sector permits.** Certification is a precondition, not the finish line: the proponent still needs the **water licence** from ANA, the sector **construction/operating authorizations** (e.g., MINEM's beneficio and exploitation authorizations), an archaeology clearance (**CIRA**), and — on communal land — a **surface agreement approved by the community assembly** (disposition of communal land in the sierra and selva requires the assembly's approval by **two-thirds of all qualified members** under Law 26505).
5. **Operation and enforcement.** OEFA (or the regional EFA) supervises; any citizen can file complaints through **SINADA** (OEFA's national environmental-complaints service — anonymous filing allowed, via *gob.pe/oeffa*); violations produce administrative sanctions and can trigger the **environmental prosecutors (FEMA)**.
6. **Legal challenge.** An unlawful administrative act can be appealed within the agency (**reconsideración / apelación**), then taken to court through the **contencioso-administrativo** process — and where constitutional rights are violated, through an **acción de amparo**, which must generally be filed within **60 working days** of the violation.

The rulebook — the policies that decide the outcome

- **The General Environmental Law (Law 28611)** — the framework statute: the right to a healthy environment, participation, and the polluter-pays principle.
- **The SEIA Law (Law 27446) and its regulation (DS 019-2009-MINAM)** — creates the National Environmental Impact Assessment System, the DIA / EIA-sd / EIA-d tiers, and the participación ciudadana requirements.
- **The Prior Consultation Law (Law 29785) and its regulation (DS 001-2012-MC)** — implements ILO Convention

169; the Constitutional Tribunal has held ILO 169 to be directly binding in Peru with the rank of a constitutional treaty.

- **The Water Resources Law (Law 29338)** — ANA’s licensing regime; water quality standards (**ECA**) and maximum permissible discharge limits (**LMP**) are published norms.
- **The Land Law (Law 26505)** and the Constitution’s Articles 88-89 — communal land protections and the assembly supermajority for disposition.
- **The Protected Natural Areas Law (Law 26834)** — SERNANP’s compatibility opinion.
- **The Transparency and Access to Public Information Law (Law 27806)** — any person may request public information; the entity must answer within **10 working days**.
- **The Criminal Code, Title XIII** — environmental crimes (contamination, illegal mining, trafficking in timber), prosecuted by **FEMA**.

Follow the money — why the system often leans toward “yes”

- **The canon minero:** half of the income tax paid by mining companies is transferred back to the regions, provinces, and districts where extraction occurs. Municipal and regional budgets — schools, roads, salaries — can depend on it, a built-in pull toward approval at exactly the levels closest to you.
- **The national accounts:** mining provides a large share of Peru’s exports and tax base, and every national government since the 1990s has treated new mines as macroeconomic policy. Ministries are under standing pressure to “unlock” projects (the recurring “destrabe” agenda).
- **Proponents** are usually well-resourced multinationals that pay for the consultants who write the environmental studies and the lawyers who defend them — and, under documented agreements (**convenios**), have lawfully contracted Peruvian police units to provide security services.

None of this makes a decision inevitable. It explains why decisions rarely tip your way on their own — it takes organised, evidenced pressure, and, where collective rights are engaged, the treaty-rank weight of consulta previa.

The overseers — who watches the decision-makers

- **The courts** — administrative decisions are reviewed by the **contencioso-administrativo** courts; constitutional violations go by **amparo** to the constitutional judges and ultimately the **Constitutional Tribunal (TC)**, which can and does annul state measures.
- **The Defensoría del Pueblo** (Ombudsperson — *defensoria.gob.pe*) — constitutionally autonomous; publishes a **monthly social-conflict report** naming every active mining and environmental conflict in the country, and intervenes in dialogue processes. Getting your conflict into the Defensoría’s report makes it officially real.
- **The Contraloría General de la República** — audits public spending and official conduct.
- **The Ministerio Público** — the **FEMA** environmental prosecutors and, for official misconduct, the anticorruption prosecutors.
- **OEFA itself watches the watchers:** it supervises whether regional and local EFAs do their enforcement jobs — you can complain to OEFA about a regional government’s inaction.

The Clock — Every Deadline That Matters

Peruvian process runs on short, unforgiving windows, and one principle governs them all: **object early and comprehensively**. Arguments that were never placed in the participation record are far weaker in court — an evaluator who was never told about the springs can claim it acted reasonably — so file everything, in every window, and keep every cargo (the stamped filing receipt).

Stage	Your window	The trap
Concession appears on GEOCATMIN	Years before machinery — start now	Waiting for “something real” wastes your longest runway
Talleres (workshops, during study preparation)	Attend, get on the record	Absence reads as consent
Audiencia pública + observation window	Fixed by resolution — typically counted in days after the audiencia	Miss it and your technical case never enters the file
Answers to observations	Evaluator must answer each one	Unanswered/evasive answers = appeal material — log them
Reconsideración (same entity)	15 working days from notification	The clock runs from notification, not from when you hear
Apelación (superior instance)	15 working days	Required to exhaust the administrative path
Contencioso-administrativo lawsuit	3 months after exhausting administrative appeals	Filing late is fatal to the claim
Acción de amparo	60 working days from the violation	The constitutional route’s hard deadline
Medida cautelar (suspension)	Any time harm is imminent — file with the claim	After the pit is dug, suspension is moot
Law 27806 information request	Entity must answer in 10 working days	Denials are appealable to the Transparency Tribunal — appeal them
SINADA / ANA complaints	Any time — each violation, every time	Undocumented harms never happened
MEIA (study modification)	Reopens participation windows	Modifications slip through when nobody re-mobilizes

QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These ranges describe the general effectiveness of each tactic drawn from documented opposition campaigns. They are patterns, not guarantees. In Peru, the single biggest variable that can push a campaign above these ranges is a well-founded consulta previa / collective-rights challenge (Step 4) — and, as Conga and Tía María show, sustained territorial mobilization can exceed every range in this table.

Individual Step Success Rates

Step	Success Rate	Timeline	Cost (PEN)	What “Success” Means
Documentation Only	5-10%	3-4 months	S/ 15K	Project slowed, public awareness only
Opposition Only	15-20%	6-12 months	S/ 45K	Public pressure, minor modifications
Legal Only	20-30%	12-24 months	S/ 150K	Slow process, often loses on its own
Media Only	10-15%	3-6 months	S/ 18K	Public knows, but no action
Docs + Opposition	25-35%	12 months	S/ 60K	Slowed, some modifications
Docs + Legal	30-40%	12-18 months	S/ 165K	Stronger legal arguments, slower
Opposition + Legal	35-45%	12-18 months	S/ 195K	Political pressure strengthens the case
Opposition + Media	30-40%	9-12 months	S/ 63K	Visibility creates political pressure
All 5 Steps Combined	60-75%	12-24 months	S/ 195K	Approval modified/denied or project delayed

Key insight: All five steps together = 3-4x more effective than any single step. (And most of the legal cost can drop to near zero — Peru’s public-interest legal organizations represent communities free of charge; see Step 4.)

STEP 1: TARGET IDENTIFICATION

Core Questions You Must Answer

Before you organize a single person, answer these precisely.

Question 1: What Exactly Will Be Destroyed?

Not: “Environmental damage” But: “The open pit will remove 96 hectares including two high-Andean lagoons that recharge the springs serving 4,000 downstream users, during the dry season when there is no substitute source.”

Not: “Water contamination” But: “The tailings facility sits 1.8 km upslope of the community’s water intake; the proponent’s own study admits seepage ‘cannot be fully excluded’ during extreme rainfall.”

Not: “Community harm” But: “The smelter’s emissions increase fine particulate (PM2.5) by an estimated 4 µg/m³ over the nearest town of 1,500 people, and blasting will run 300 metres from the primary school.”

Why this matters: specific harms are easier to document, litigate, and organize around. Vague opposition dies; specific opposition survives.

Question 2: Who Has Decision-Making Power?

You cannot pressure an abstraction. In Peru a single project often has decision-makers at three levels — identify each one by name and role:

- **National — environmental certification.** For an EIA-d project, **Senace** evaluates and approves through EVA, with participación ciudadana windows. For DIA and EIA-sd tiers, the **sector ministry** or the **regional government** evaluates. Registry: Senace’s public consultation module and the ministry’s mesa de partes.
- **National — the operating permissions.** **INGEMMET** for the concession (watch **GEOCATMIN**, INGEMMET’s free public concession map — geocatmin.ingemmet.gob.pe); **MINEM** for exploitation and beneficio authorizations; **ANA** for the water licence; **SERNANP** where a protected area or its buffer zone is touched; the **Ministry of Culture** for the CIRA and for ordering **consulta previa**.
- **Regional.** Small/artisanal mining certification; the regional EFA; ordenamiento territorial ordinances.
- **Municipal.** Zoning, construction licences, licencias de funcionamiento.
- **The community itself.** On communal land, the **assembly** must approve any surface agreement or disposition — by a two-thirds supermajority of all qualified members for disposition. This is a decision point *you control*.

Write it down concretely: “Senace must approve the EIA-d; observations close on the date fixed after the audiencia pública. MINEM cannot authorize exploitation without the certification, the ANA licence, and a surface agreement our assembly has refused. Our community appears in the BDPI and no consultation plan has been published.”

Question 3: What Specific Action Stops It?

Not: “Stop the project” But: “Senace declares the EIA-d inadmissible on water-balance and cumulative-effects grounds” — or, if outright rejection is unrealistic, “binding conditions: relocation of the tailings facility out of the watershed, a S/ 80M closure guarantee, and an independent, community-led water-monitoring committee with public data.”

Not: “Protect the environment” But: “The Ministry of Culture orders consulta previa before the exploitation authorization, because the measure affects our collective rights” (a specific, winnable administrative outcome with treaty force behind it).

Why this matters: you can demand something achievable. Vague demands are easy to ignore; specific demands create measurable pressure.

Question 4: When Is the Decision Final?

Timeline tells you how much time you have. The EIA review runs on defined stages with a fixed observation window after the audiencia pública; administrative appeals (**reconsideración**, 15 working days; **apelación**) have short deadlines; an **amparo** must generally be filed within **60 working days**; a contencioso-administrativo demand within three months of exhausting the administrative path. Map every date: the talleres, the audiencia, the observation deadline, the resolution date, and the deadline to challenge it.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

This is the tilted-system assessment question. Know it BEFORE you organize: - Does the district, province, or region depend heavily on the **canon** from this sector? - Is the environmental study funded and written by the proponent only (it always is — the question is whether any independent review exists)? - Does the evaluating body approve nearly everything (a high approval rate)? - Was the concession granted with no consultation (it almost always is)? - Is there a **convenio** between the police and the company? Has a **state of emergency** ever been declared in the zone? - Are there undisclosed proponent-official contacts, or officials who came from (or later join) the company?

Why this matters: if the decision-makers face strong revenue pressure or the process is proponent-controlled, opposition must overcome different barriers (Section 9). It doesn’t mean opposition can’t work — it means realistic expectations and,

often, a focus on modifications and the consulta previa lever rather than an outright refusal.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

The Three Documentation Layers

Documentation transforms vague opposition (“This is bad”) into undeniable evidence (“This specific harm will occur to these specific people/species at these specific costs”). Success comes from three layers working together.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

What it is: comprehensive documentation of existing conditions BEFORE the project begins.

Why it matters: proponents claim “it’s already disturbed” or “baseline isn’t important.” Baseline documentation proves what was there — and it cannot be reconstructed later.

Documented case — Tía María and the UNOPS review

In 2010-2011, the communities of the **Tambo Valley** (Islay, Arequipa) confronted Southern Copper’s proposed **Tía María** open-pit copper mine — a project the national government treated as inevitable. Rather than accept the proponent’s environmental study, opponents demanded and obtained an **independent technical review**: the government sent the first EIA to the **United Nations Office for Project Services (UNOPS)**.

The UNOPS review returned **138 observations** against the study — including fundamental gaps on water supply, the aquifer, and the project’s effects on the agricultural valley that feeds the region. Faced with a document that the state’s own commissioned reviewers had found riddled with holes, the government declared the study inadmissible and **the EIA was withdrawn in 2011**. The project has been resubmitted and re-fought ever since — and has still not been built, more than a decade later, because the valley’s opposition has never let the gap between the paper and the reality close.

Why it matters for you: the campaign didn’t beat the mine with slogans; it beat the mine’s *document*. An environmental study is the project’s legal foundation — demonstrate that the foundation is defective, on the record, and the whole structure above it stalls. Documentation isn’t a formality — it can be the thing the state itself is forced to act on.

Building your own baseline (typical process). Document existing conditions before the project starts, because a proponent will claim a site is “already disturbed” and baseline cannot be reconstructed later. A workable approach: monthly surveys across at least a full wet/dry season cycle — more if you can — of the project area plus upstream/downstream reference sites; a species inventory with GPS locations of breeding habitat, flagging species on Peru’s threatened-species lists (DS 004-2014-MINAGRI for fauna) that the proponent’s study omitted; ecosystem structure (bofedales and wetlands, riparian vegetation, lomas or forest composition); and hydrology (pH, dissolved oxygen, temperature, turbidity, seasonal flow — measured against the official **ECA** water-quality standards). Springs (**manantes/puquios**) deserve a full inventory of their own — named, GPS-located, flow-measured in dry season, with the families and hectares each one serves. Typical cost is around S/ 12,000 for a consultant, GPS, and water-testing supplies — reducible with knowledgeable community members and the technical support of the national networks (**Red Muqui** — *muqui.org* — and **CooperAcción** — *cooperaccion.org.pe* — have supported community monitoring across the country). Dated seasonal photographs and grid-referenced maps make it credible.

A Peruvian strength — the community water-monitoring committee. Across the mining regions, communities have formed **comités de monitoreo y vigilancia ambiental participativa** — trained community members sampling water on a schedule, ideally alongside official ANA/OEFA sampling so results can’t be dismissed. Their data has repeatedly forced official recognition of contamination. Form one early; it is simultaneously documentation (Step 2), organization (Step 3), and standing evidence for enforcement complaints (Step 4).

LAYER 2: IMPACT ANALYSIS

What it is: detailed analysis of what specific harms will occur, based on the project description plus your baseline.

Why it matters: it shows not just “something bad” but “specifically THIS BAD in THIS WAY.”

The clever part — use the proponent’s own admissions. Environmental studies routinely contain sentences like “some loss of riparian vegetation is unavoidable” or “turbidity may increase during extreme precipitation events.” Convert each admission into a quantified prediction against your baseline: - Turbidity: predicted 200+ NTU during storms vs. baseline

5-10 NTU — against the ECA standard for your water category - Sediment loading: multiples of the baseline tonnes/year into an irrigation system serving X hectares - Dry-season flow: the study's own water balance vs. your measured spring flows and ANA's registered uses - **Cumulative effects:** this project *plus* every other concession, discharge, and diversion already in the watershed — the single most common weak point in Peruvian environmental studies, and precisely the kind of gap the UNOPS reviewers hammered at Tía María.

Outcome (illustrative): an evaluator confronted with observation after observation it must answer in writing — each grounded in data — either sends the study back for a substantial rework (a multi-year delay) or issues an approval whose unanswered defects become the grounds for the legal challenge in Step 4.

Cost-benefit: a modest impact-analysis investment led, in the Tía María case, to the withdrawal of the EIA of a multi-billion-dollar project.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

What it is: quantification of human-health and economic costs to the community.

Why it matters: decision-makers respond to human cost. “X species will be affected” matters less than “an estimated 45 additional respiratory cases per year, and the collapse of an agricultural economy that exports S/ X million of rice, sugar, and vegetables.”

Method: use recognized air-quality modelling plus the epidemiological literature to translate emissions into health outcomes, then attach costs. Peru's own instruments help: DIGESA's environmental-health standards, the ECA air standards, and the heavy-metals exposure studies the Ministry of Health has run in mining zones (Cerro de Pasco, La Oroya, Espinar are documented national reference points for what unmitigated extraction does to blood-lead and health outcomes). Present it plainly: additional asthma exacerbations, projected heavy-metal exposure in children, hospital visits, lost work days — and, in agricultural valleys, the economic comparison the Tambo Valley made famous: the permanent annual value of the valley's agriculture versus the mine's finite jobs. That economic self-confidence (“we already have an economy — yours destroys it”) is one of the most persuasive arguments in the Peruvian record.

Outcome (illustrative): an independent health-and-economy analysis reframes the fight from “environment vs. jobs” to “existing livelihoods vs. a temporary enclave,” splits local opinion away from the proponent, and gives congresistas and regional politicians a defensible reason to oppose.

Cost-benefit: a modest health/economic-documentation investment changes the political arithmetic around the project.

How to Structure Your Documentation

Phase 1: Baseline Conditions (Months 1-2)

- Hire an environmental consultant (or identify knowledgeable community members — agronomists, nurses, teachers, university students from the regional university)
- Establish a survey schedule (wet season / dry season)
- Create data-collection forms; document conditions; form the water-monitoring committee
- **Deliverable:** 20-30 page baseline report — species/ecosystem inventory, water-quality data against ECA standards, spring inventory, seasonal patterns, dated photographs (same locations across seasons), GPS maps

Phase 2: Impact Analysis (Months 2-3)

- Obtain the project description + environmental study (from Senace's EVA consultation module, or by a Law 27806 request)
- Identify specific impacts; use baseline data to predict specific harm
- **Deliverable:** 20-30 page impact analysis — quantified predicted impacts, comparison to baseline and ECA/LMP standards, references to the proponent's own admissions, maps/charts — written so its sections drop directly into formal observations

Phase 3: Health/Economic Analysis (Months 3-4)

- Identify affected populations; use the epidemiological literature and Peru's documented mining-zone health studies to predict health impacts; quantify the existing agricultural/livestock/tourism economy at stake
 - **Deliverable:** 15-20 page health/economic report — specific outcome predictions, cost quantification, comparison to regulatory thresholds, written for public/media
-

Common Documentation Pitfalls (What Fails)

Pitfall 1: Waiting for Perfect Data

Documented data beats perfect data that arrives after the decision. (The **Monitoring & Imagery** lens lists satellite and web-archiving tools to watch the site over time.) A seasonal baseline in 3-4 months beats pristine data collected too late — the observation window will not wait for you.

Pitfall 2: Only Environmental Data

Decision-makers respond to budget, liability, and health as much as species. Document environmental **plus** health **plus** economic impacts — in Peru, the existing-economy argument (the valley's agriculture, the puna's herds, the river's fishery) has repeatedly been the decisive frame.

Pitfall 3: No Peer Review

A report the evaluator can dismiss as "advocacy" becomes far stronger after an independent professional reviews it. Budget S/ 2,000-3,000 for peer review by a university hydrologist or biologist; it buys credibility — and remember that in the biggest Peruvian case, it was an *international* independent review (UNOPS) that broke the project's study.

Pitfall 4: Ignoring the Proponent's Own Admissions

Quote the proponent's environmental study against itself. Their sentence "seepage cannot be fully excluded during extreme events" is an admission you build a water-security case on — and every observation they answer evasively becomes appeal material.

Documentation Budget Breakdown (PEN)

Item	Cost	Notes
Environmental consultant (80 hrs @ S/ 120/hr)	S/ 9,600	Baseline survey + species ID
GPS equipment (purchase/lease)	S/ 1,100	Mapping/documentation
Water-quality testing supplies	S/ 900	Sampling across seasons, lab fees
Peer review (independent professional)	S/ 2,300	Credibility + legitimacy
Printing/distribution	S/ 700	Copies for decision-makers, the audiencia, the press
TOTAL	S/ 14,600	Reducible using knowledgeable community members

Cost reduction: if the budget is S/ 6,000-9,000, use community members for fieldwork, hire the consultant only for analysis/peer review, lead with the strongest layer (in agricultural valleys, the economic layer; in headwater zones, the water layer) — and ask the national support organizations (Red Muqui, CooperAcción, SPDA — spda.org.pe, whose Actualidad Ambiental also tracks every regulatory change) for technical accompaniment; supporting exactly this work is what they exist for.

If You Can't Build a Whole Campaign — Smaller Moves That Still Count

Not everyone can chair an assembly or spend a year on this. An hour a week, or a single afternoon, is still useful. The most effective single act in this guide — filing a substantive objection into the official record before the deadline — takes one person and no organisation. These are the higher-leverage things one person can do, roughly ordered by effect per hour:

- **File one written objection in the participation window.** It enters the official file, the authority must respond to it, and an unanswered serious objection can become a legal defect later. Use the letter templates further down; attach one concrete fact — a figure from the study, a missing survey, the water source named. Keep the receipt.
- **Send the deadline to ten neighbours.** Forward the map's project dot, the comment deadline, and one line on what is at stake. Ten short objections from ten households carry more weight than one long one.
- **File one information request.** Ten minutes on the FOIA channel for the full file and the correspondence. The request is on the record and the response has a legal deadline; pass whatever arrives to anyone with more time.
- **Call the right official once.** Not an email — a call to the person who represents the affected area, giving the file number and one specific ask: return the study, impose a condition, hold the hearing.
- **Give one reporter one document.** The developer's own study admitting a harm, plus the deadline, is a story.
- **Photograph the site, dated, before work starts.** This cannot be redone later. It is baseline evidence a lawyer can use.
- **Circulate a petition aimed at the decision.** One that names the file, the ask, and the deadline, delivered before

the vote, does more than a larger one that arrives after.

Each of these targets the official record and the deadline, and each works on its own. If others join, the same acts become the start of a fuller campaign.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANIZE COMMUNITIES THAT HOLD

Critical Insight About Organizing

Most opposition campaigns fail not because they can't build opposition, but because opposition burns out after 4-8 months — or because its leaders are worn down by criminal complaints. You need organizational structures that prevent burnout and that protect leaders by making decisions collective and documented.

Peru's advantage: you are not inventing structures. The **community assembly**, the **ronda campesina**, the **frente de defensa**, the **junta de regantes** (irrigators' board), and the **comité de monitoreo** are existing, legally recognized or long-established forms with deep legitimacy. Build with them, not around them.

PHASE 1: FOUNDATION (Months 1-2)

Goal: a core group of 15-20 motivated people and a clear picture of their concerns.

Step 1a: One-on-One Conversations

People don't join movements from flyers; they join from relationships. Identify the 15-20 people most affected or interested. **Visit** each (don't rely on messages) for a one-hour conversation — at their chacra, their stall, after faena. Ask: "What's your biggest concern about this project?" Listen — don't pitch. Ask what they'd be willing to do.

Each person has a different concern (water for irrigation, pasture, health, land title, a way of life). Opposition organized around each shared concern is stronger than a single generic message.

Step 1b: Affinity Groups by Concern

Organize small groups (3-8 people) around a shared concern. People who won't unite under one banner will unite around their own stake: - **Land/title group** — "the concession covers my parcela," surface agreements, servidumbre threats, compensation - **Agricultural/water group** — the junta de regantes, springs, canals, dry-season flow, ECA exceedances - **Health group** — dust, blasting, heavy metals, the school's proximity - **Environmental group** — bofedales, headwater lagoons, species, cumulative effects - **Cultural/collective-rights group** — where the project affects an indigenous or original people's territory, sites, and rights (this group is led by the affected people and its assembly, not spoken for — see Step 4)

Each group meets monthly, strategizes how opposition serves *their* interest, and coordinates while keeping its distinct framing.

Step 1c: Coalition Structure (Early)

Formalize coordination between the affinity groups — in Peru, this is what a **frente de defensa** is. Essential elements: a name; the list of participating groups (the community assemblies, the ronda, the junta de regantes, the market association...); a decision-making process (consensus or majority vote, recorded in an **acta**); a meeting schedule; a communication method; and a conflict-resolution process. A **written agreement in the actas book** prevents "the frente fell apart because one group went rogue" — and the actas protect leaders later, because every decision is demonstrably collective.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Goal: announce opposition to the public, the media, and decision-makers.

Step 2a: Community Forum

Hold a public meeting where the community explains its concerns to itself, to decision-makers, and to media. A **forum** (civic engagement) beats a rally (protest) at launch, because authorities must engage a forum and can dismiss a rally — and because the proponent's own talleres will otherwise be the only "participation" on the record.

Typical 3-hour agenda: welcome (10 min) → project explanation in plain terms and in the community's language, with Quechua/Aymara/Amazonian-language interpretation where appropriate (15 min) → community concern input, each person 3-5 minutes (60 min) → expert Q&A with a hydrologist, a health voice, and a lawyer (20 min) → next steps (15 min). Tone: serious and informational, not emotional. Invite the Defensoría del Pueblo's regional office — their presence both protects and legitimates.

Step 2b: Opposition Materials (Factsheets)

One page. Decision-makers won't read 30 pages; one page gets read. Structure: a headline stating the problem → quick quantified facts → the specific impact → **what you're asking for** → the scientific basis → contact/resources. Print 1,000, distribute at the market, the plaza, the parish, the community offices; post a digital version; produce it in Spanish **and** the community's own language, and record a radio version — in rural Peru, **radio is the medium that reaches everyone**. Cost: ~S/ 800.

Step 2c: Public Petition

Decision-makers count signatures. Structure: title (the specific ask) → problem statement → the specific ask (e.g., "We petition Senace to declare the EIA-d inadmissible on water-balance grounds, OR require [named conditions]") → signature section with DNI numbers → delivery instructions. Collect at the market, door-to-door, at assemblies; 500 minimum, 1,000+ better; deliver at a public/media event at the mesa de partes, and get the stamped receipt (**cargo**). Cost: ~S/ 150.

Step 2d: Media Coverage at Launch

Release data + petition together = a news story. (Full press-release example is in Section 8, 8G.) Call reporters and the regional radio first, then send the study. Expect 1-3 local/regional stories and radio segments.

PHASE 3: COALITION EXPANSION (Months 3-6)

Goal: grow from 20 core people to 50+ core plus 5-10 organizations.

Step 3a: Organization Outreach

Approach the junta de regantes and producer associations, the rondas of neighbouring communities, the parish and evangelical churches, teachers' and market associations, regional environmental groups, the regional university, and the national networks (Red Muqui, CooperAcción, CNDDHH member organizations). Research each; visit the leader directly; explain how opposition serves *their* mission; make a specific, tailored ask.

Tailored asks: - **Junta de regantes:** "The water balance in the study contradicts your licensed flows — will you file observations as the legally recognized water users?" - **Parish / church:** "Care for creation is your mission — can you host one vigil and lend the parish hall for meetings?" - **Regional university:** "We need a hydrologist to review the study — can a faculty member and thesis students take it on?" - **Producers' association:** "The project threatens the valley's certification and markets — will you provide economic-impact testimony?"

Step 3b: Coalition Agreements (Written)

A written document specifying how the frente works and what each organization commits to prevents later conflict. Elements: who's in; decision-making (consensus vs. vote); meeting frequency; the public message; who may speak for the frente; conflict resolution; how money is handled; an exit clause. Consensus is stronger but slower; voting is faster but can fracture. Record it all in *actas*.

Step 3c: Coordinated Public Work

Assign leadership by strength: water and technical messaging to the junta and the university allies; economic/health to the producers and health workers; media to whoever has the radio and press contacts; legal to the supporting legal organization. Sequence activities so each builds media momentum (frente launch → data release → mobilization → petition delivery at the mesa de partes).

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Goal: maintain organized opposition across a 12+ month timeline.

Step 4a: Public Demonstrations

Regular, disciplined, and lawful: plantones at the regional government or the ministry's regional office, marches with route coordination, symbolic actions at the audiencia. Structure: a fixed monthly date, visible location, 30-60 minutes of signs and speeches, then a short march. Handle logistics: advance notice to authorities where required, water and shade,

accessibility, a sound system for 100+, trained marshals, and **legal observers with cameras** — in Peru, documenting your own conduct protects you when criminal complaints are filed later. Momentum matters: “50 gather” becomes “the plantón grows to 500” as attendance grows.

Step 4b: Media Campaign (Ongoing)

Monthly rhythm: week 1 a news release tied to an event/data; weeks 2-3 social media 3x/week and a standing radio slot; week 4 a reporter check-in call. Rotate release themes (petition milestone → expert finding → coalition growth → mobilization → economic analysis → decision deadline → the Defensoría’s monthly conflict report listing your case).

Step 4c: Common Opposition Failure Points (How to Prevent)

Failure Point 1: Burnout (Months 4-8). Prevent it: monthly (not weekly) general meetings; celebrate milestones; fund one part-time organizer (~S/ 1,200-1,500/month) so volunteers don’t carry logistics; schedule explicit breaks around the agricultural calendar; keep a public progress tracker.

Failure Point 2: Coalition Conflict. Prevent it with a written agreement and decision process, a clear escalation path (discuss → a respected mediator, often the parish or the Defensoría), an explicit exit clause, and rotating leadership so no single organization controls the frente.

Failure Point 3: The Proponent’s Social Programs. Peruvian proponents run sophisticated community-relations operations — gifts, contracts, jobs, “development agreements” offered community by community to split the coalition. Prevent it by agreeing in the actas, early, that no member community negotiates individually, and by making every offer public the day it is made.

Failure Point 4: Criminalization of Leaders. Complaints for extorsión, disturbios, or usurpación against visible leaders are a documented pattern. Prevent the damage: collective, documented decision-making (the actas again); rotating spokespeople; an established relationship with a legal-defense organization (IDL — idl.org.pe; FEDEPAZ — fedepaz.org) **before** any charge arrives; and immediate registration of every threat with the Fiscalía and the **CNDDHH** (Coordinadora Nacional de Derechos Humanos, the national human-rights coordination — derechoshumanos.pe).

Failure Point 5: No Clear Wins. Prevent hopelessness by naming milestones as victories (500 signatures, the Defensoría listing the conflict, a 300-person forum, observations formally admitted) and publicizing cumulative progress.

Opposition Building Budget: Year-Long Campaign (PEN)

Item	Cost
Factsheet + radio spot production (1,000 copies + recording)	S/ 1,100
Website/email hosting (annual)	S/ 600
Meeting supplies (assembly logistics, refreshments)	S/ 900
Outreach transportation (combis, fuel between annexes)	S/ 1,800
Petition collection supplies	S/ 150
Mobilization supplies (banners, sound)	S/ 1,600
Coalition meeting expenses	S/ 700
Part-time organizer stipend (S/ 1,300/month × 12)	S/ 15,600
Communications support (radio slots, social media, 3 months part-time)	S/ 4,200
Fundraiser/event costs (pollada, festival)	S/ 2,000
Legal-defense reserve for leaders (retainer/expenses)	S/ 11,000
TOTAL	S/ 39,650

Reductions: drop the paid organizer to run a shorter 6-month campaign, or use a volunteer coordinator, to cut ~S/ 15,000; the legal-defense reserve shrinks if a pro-bono organization commits early.

Funding the campaign. Money typically comes from four places: individual and community contributions (cuotas agreed in assembly, polladas, festival collections); grants from environmental, human-rights, and church funders (long lead times — apply early; the national networks can direct you to funds that support exactly this); benefit events; and in-kind support from coalition organizations (meeting space, transport, professional time). International defender-support funds also exist for security costs. Aim to raise half the budget by month 6 and the rest by month 12.

STEP 4: LEGAL CHALLENGES — HOW TO USE PERU’S

REGULATORS AND COURTS

Who fights beside you — and for free. A strong case in Peru is not gated by the ability to pay, because the country's public-interest legal organizations represent communities at no charge. Know them now, before you need them: - **IDL — Instituto de Defensa Legal** (idl.org.pe) — strategic litigation and the defense of criminalized leaders; its investigative unit is IDL-Reporteros. - **FEDEPAZ** (fedepaz.org) — legal defense in mining-conflict zones. - **EarthRights International, Lima office** (earthrights.org) — litigation on police convenios, defender protection, transnational accountability. - **CooperAcción** (cooperaccion.org.pe) — concession mapping and territorial accompaniment with legal-technical support. - **DAR — Derecho, Ambiente y Recursos Naturales** (dar.org.pe) — Amazon governance and consultation litigation support. - **Red Muqui** (muqui.org) — the national network on mining and communities, connecting local fights to lawyers and experts. - **SPDA — Sociedad Peruana de Derecho Ambiental** (spda.org.pe) — environmental-law expertise. Experienced specialist counsel measurably outperforms generalists, and self-representation fares worst — which is exactly why these organizations matter.

Peruvian legal strategy has three tracks, and one of them — consulta previa — is uniquely powerful.

TRACK 1: REGULATORY PARTICIPATION (the front door)

The SEIA builds public participation into the process, and using it well creates the record you will need later.

Senace and the sector evaluators. For an EIA-d, participación ciudadana is mandatory: informational **talleres** during preparation, a formal **audiencia pública** during evaluation, and a written **observation window**. Every observation filed through **EVA** or at the **mesa de partes** (the entity's document-reception desk, physical or virtual — always keep the stamped **cargo**, your proof of filing) must be answered, one by one, in the evaluation report. Comments filed on the record shape the conditions attached to any approval — and become evidence if the decision is later challenged. File specific, evidence-based observations during each open window; cite your Step 2 documentation, the ECA/LMP standards, and the study's own admissions.

OEFA and SINADA. Enforcement participation is open to everyone: any citizen can file an environmental complaint through **SINADA** (anonymously if needed), each one generating a case number the agency must process. A file of SINADA case numbers, OEFA supervision findings, and ANA complaints is both pressure now and evidence later.

ANA, SERNANP, and the municipality. The water licence has its own opposition procedure before ANA; SERNANP's compatibility opinion can be contested where a protected area or buffer zone is touched; municipal construction licences and zoning have their own hearing and appeal routes. Use every one — a national certification is worthless to a proponent who cannot get the ANA licence or the community assembly's land agreement.

Why this track matters: filing well — specific, on time, grounded in evidence — often does more than filing loudly, and it lays the foundation for Tracks 2 and 3.

TRACK 2: CONSULTA PREVIA — PERU'S STRONGEST LEVER

This is the most powerful tool in Peruvian law for communities affected by development. Understand it before anything else.

Peru ratified **ILO Convention 169**, and the **Constitutional Tribunal** has held that it forms part of the constitutional block — directly binding on every state entity (the leading ruling is Exp. 00022-2009-PI/TC). **Law 29785** (2011) — passed in the aftermath of the Bagua tragedy — and its regulation **DS 001-2012-MC** turned the treaty obligation into a statutory process: before any administrative or legislative measure that may affect the **collective rights** of indigenous or original peoples, the responsible entity must run a formal consultation — identification of the measure and the peoples, publicity, information, the people's internal evaluation, intercultural dialogue, and a reasoned decision. The **Ministry of Culture** maintains the official **Base de Datos de Pueblos Indígenas (BDPI)** and oversees the process.

What it means in practice: - When a measure affects collective rights and consultation was skipped or done defectively, courts can and do intervene: rulings have **suspended projects and ordered consultations held** — the Amazonian waterway (Hidrovia Amazónica) went to consultation only after litigation by the affected federations, and oil-block operations in the Amazon have been ordered into consultation the state had refused to run. A missing or defective consultation is a nullity ground against the approving act. - **Consultation is not (yet) a veto.** Peruvian law requires the state to consult in good faith and seek agreement — not to obtain consent in every case; where no agreement is reached, the state decides, with a duty to guarantee the people's rights. Campaigns that overstate this get blindsided; state it accurately. (Consent has stronger footing in extreme cases recognized in inter-American jurisprudence — large-scale projects with major impacts, relocation — get current legal advice.) - **The ground is contested and moving.** Which measures trigger consultation (the concession? the EIA approval? the exploitation authorization?), and how meaningful

the dialogue must be, are live legal and political fights. Mining consultations have mostly been run at the authorization stages, and federations continue to litigate for earlier and deeper consultation. **Get current advice from the organizations below before relying on any single doctrinal position.**

How allies engage this track: the affected people is a rights-holder that leads its own legal strategy through its own assembly and federations (AIDSEP, CONAP, and their regional bases in the Amazon; the campesino confederations CNA and CCP in the Andes). Allies support that leadership when invited; they never speak for it or launch consultation litigation on its behalf. Done with respect and on the people's terms, this alliance has been decisive in the biggest Peruvian wins.

TRACK 3: AMPARO, CONTENCIOSO-ADMINISTRATIVO, AND STATUTORY CHALLENGES

Most legal challenges to Peruvian approvals take one of two judicial paths: the **proceso contencioso-administrativo** (asking a court to annul an unlawful administrative act, after exhausting the administrative appeals — reconsideración/apelación) and the **acción de amparo** (a constitutional claim for violation of fundamental rights — the healthy environment, water, communal property, prior consultation — generally filed within **60 working days**). Two further constitutional actions matter: the **acción popular** (striking down illegal regulations) and the **acción de cumplimiento** (forcing an agency to perform a legal duty it is ignoring — for example, making an EFA actually enforce).

There are, functionally, three sub-types:

TYPE 1: REGULATORY / ADMINISTRATIVE CHALLENGE (fastest, cheapest)

Challenge the decision through the agency's own appeal process where the approval violates the governing framework (e.g., the study never analyzed cumulative effects the SEIA regulation requires; the audiencia was held without interpretation in the community's language; observations were never answered). File the reconsideración/apelación within the short window, pairing it with your Track 1 record. A supporting legal organization can carry this at little or no cost.

TYPE 2: CONSTITUTIONAL / JUDICIAL LITIGATION (longer, more expensive)

File the amparo or the contencioso-administrativo challenging the approval's validity, often paired with a **medida cautelar** (precautionary measure) to suspend works pending the outcome. Peruvian grounds include: the right to a balanced and adequate environment (Constitution art. 2(22)); communal property and autonomy (arts. 88-89); prior consultation (ILO 169 / Law 29785); the Water Resources Law; the Protected Natural Areas Law; and the SEIA's own mandatory requirements. The strongest cases carry consultation grounds under Track 2 — and can ultimately reach the Constitutional Tribunal and, beyond it, the Inter-American system, whose jurisprudence on indigenous territory binds Peru.

TYPE 3: POST-APPROVAL / COMPLIANCE CHALLENGE (highest success rate)

Once a project is operating, attack breach of its own instrument and permits: SINADA complaints and OEFA sanction proceedings for exceedances and unauthorized works; ANA proceedings for taking or contaminating water outside the licence; and **criminal complaints to FEMA** for environmental crimes under Title XIII of the Criminal Code. These have the highest success rate of the three because the violation is concrete and documented — your monitoring committee's data plus OEFA's own supervision reports — and can force stoppages of offending components, added mitigation, fines, and criminal exposure that changes the proponent's calculus.

Standing. Peruvian law is generous here: environmental amparos and citizen complaints can be brought broadly in defense of diffuse environmental interests — a community organization or ronda, not only a directly affected titleholder, can act. The Defensoría del Pueblo can also intervene.

Legal Strategy Decision Tree

START: Is an EIA under evaluation (talleres/audiencia/observations open)?
└ YES → File observations NOW through EVA / mesa de partes (Track 1). Build the record.
└ NO → Identify the pending permits (ANA, MINEM, municipal) and their windows.

Q1: Does the measure affect an indigenous or original people's collective rights?
└ YES → The people and its organizations lead. Support the consulta previa track (Track 2). This is often the strongest available challenge.
└ NO / UNCLEAR → Check the BDPI; consult the Ministry of Culture record. Continue.

Q2: Is there a clear legal defect in the decision?
└ NO (process followed, you just disagree) → No strong challenge; focus on opposition + media.
└ UNCLEAR → Free initial consult with a public-interest legal organization (below).
└ YES → Continue.

Q3: Budget available?
└ S/ 0 → Approach IDL / FEDEPAZ / EarthRights / Red Muqui (free); Track 1 + consultation support.
└ S/ 0-12K → Administrative appeal + early amparo with pro-bono help; file within 60 working days.
└ S/ 12-75K → Amparo/contencioso + medida cautelar prep, combined with opposition.
└ S/ 75K+ → Full litigation + cautelar; timeline 12-24 months; pair with opposition + media.

Q4: Is the harm imminent/irreversible once construction starts?
└ YES → Seek the medida cautelar immediately.
└ NO → The challenge proceeds on the normal timeline.

RECOMMENDED PATHS
Path A – Strong regulatory defect + limited budget:
Track 1 observations + prompt administrative appeal (pro-bono) + build opposition.
Path B – Collective rights affected:
Support the people's consulta previa challenge (Track 2) + Track 1 + media. Highest ceiling.
Path C – Weak legal case:
Don't litigate. Focus on opposition + media to create political cost and win conditions.

Litigation Success Factors

Litigation succeeds when **combined** with the other steps: - Litigation alone: 20-30% - Litigation + opposition: 35-45% - Litigation + opposition + media: 50-70% - Litigation with a well-founded **consulta previa** ground: can exceed these, because the court is applying a treaty-rank standard the state cannot legislate away.

A judge who sees a serious legal claim **plus** visible territorial opposition **plus** media coverage treats the matter as serious and is likelier to grant the cautelar or push the state into a redo. Tía María is the clearest Peruvian illustration of the combined machine: a demolished study (documentation), an unbreakable valley (opposition), national coverage (media) — and a project that a decade of governments has been unable to build.

What to Avoid: Legal Failures

- **Litigating instead of organizing.** A lone technical claim with no visible opposition and no media reads to a court as a niche dispute. Build opposition first; litigate with it visible.
- **Litigating too late.** Miss the 60-working-day amparo window or the administrative-appeal deadline and you're reduced to cleanup after construction starts. Act within the statutory deadline.
- **Weak arguments.** "This project is bad for the environment" is a policy opinion. "The study fails to analyze cumulative effects on the watershed as the SEIA regulation requires, and the entity never answered observations 14-23" is a legal claim a court can rule on.
- **Speaking for a people.** Never launch or frame a consultation claim on behalf of an indigenous or original people. Support; don't appropriate.

Turning Your Evidence Into the Arguments That Work

How the evidence is framed decides most cases. One pattern holds across jurisdictions: courts rule for challengers on procedure and specific legal duties more often than on the merits of the science. A judge will rule that a required step was skipped, but is reluctant to substitute their own judgment for the agency's on whether a project is too harmful. Aim the strongest evidence at the arguments courts will grant. In rough order of reliability:

1. **A required procedure was skipped or faked** — a mandatory hearing never held or staged, a comment period cut short, an approval issued before a required review concluded, notice never properly given. This is the most reliable ground. Build it from the official file and correspondence (Public Records & FOIA lens) and your own record of the participation windows.
2. **Serious objections went unanswered.** Where the authority must consider substantive objections, an approval that ignored them is exposed. This is one reason to file written observations even when it feels futile — they become the record the court reads.

3. **A hard legal standard was breached** — a protected-area or setback rule, a pollution limit, a forbidden activity in a protected zone, a bonding or insurance requirement never met. These are the strongest substantive arguments, because they ask the judge to read a rule, not weigh science. Build it from the study's own admissions set against the limit, your baseline data, and the register that defines the standard (Environmental & Regulatory lens).
4. **The study was legally defective** — missing seasonal surveys, no cumulative-impact analysis, ignored alternatives, a baseline too thin to support the conclusion. Build it from the developer's study read against your independent baseline and expert review (one credible expert report anchors the case).
5. **Required consultation of affected or Indigenous communities was skipped.** Where consultation is legally owed and was omitted or reduced to a formality, that alone can void an approval and it draws outside attention.
6. **The decision-maker was biased or conflicted** — an undisclosed financial interest, a decision that overrode the technical staff without reason, the revolving door. Build it from the ownership timeline, asset declarations, and corporate records (Property & Financial, Corporate & Ownership, and Contracts & Money lenses).

Two rules carry across all six. Where you can phrase a point as “a rule was broken,” do — it is more winnable than “the agency was wrong.” And where your jurisdiction recognises a precautionary principle, argue that a credible risk of serious or irreversible harm justifies protection; you need not prove the harm is certain. File before the harm is irreversible: a court protects what still exists more readily than it restores what is gone, so an injunction or suspension sought before the ground is cleared is the request that most often works, and it buys the time a full case takes.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Peru has a strong independent-media ecosystem that covers exactly these fights — and a documented record of that coverage changing outcomes.

How Journalists Actually Work

What reporters care about, in order: (1) **news** (something new happened), (2) **consequence** (someone is affected), (3) **timeliness** (it's happening now), (4) **conflict** (there's a real dispute), (5) **new information** (this was not known before). What they don't care about: your opinion, how angry you are, vague statements, or meetings with no news hook.

The Newsworthiness Formula

NEWS = DATA + CONSEQUENCE + TIMELINESS + NEW INFORMATION

- **Bad:** “Community opposes the mine.” (no data, no specific consequence, no timeliness, nothing new) → ignored.
- **Good:** “Independent study: the tailings site threatens the springs serving 4,000 people; observations close on [date].” (data + consequence + timeliness + new info) → covered.

The difference is roughly a 4-5x change in the likelihood of coverage.

Know the Outlets That Cover This Beat

The **Watchdogs & Databases** lens on the map lists the investigative outlets and reference collections that cover this beat where you are.

- **Ojo Público** (*ojo-publico.com*) — independent investigative newsroom with a sustained extractives, environment, and indigenous-rights portfolio; built for exactly this accountability beat.
- **Convoca** (*convoca.pe*) — investigative outlet whose data journalism on mining infractions and enforcement has repeatedly set the national agenda.
- **IDL-Reporteros** (*idl-reporteros.pe*) — the investigative unit that broke much of Peru's biggest corruption reporting; the place a documented misconduct story lands hardest.
- **Mongabay Latam** and **SPDA's Actualidad Ambiental** — specialist environmental coverage with national reach.
- **La República**, regional dailies, and — decisive in rural Peru — **radio**: RPP nationally and the regional/local stations everyone actually listens to. A campaign without a radio strategy is invisible where it matters most.

Building Reporter Relationships (The Key)

Reporters don't call opposition for comment; opposition calls reporters with news tips. Identify 5-10 reporters (the environment/extractives beat nationally, plus the regional correspondents and the radio directors). **Call** first (messages get buried): “I saw your coverage of [similar conflict]. We have a similar situation in [place] and I think your audience should know. Do you have 20 minutes this week?” Then build the relationship over months — send them a relevant

document, a data tip, a milestone update — so that by the time you have a big story, they already know you.

Sample Media Timeline

- Month 1: establish relationships (call five reporters and two radio directors; get on their radar)
- Month 2: first story (petition results)
- Month 3: press conference releasing the study; expert available
- Month 4: frente/coalition announcement
- Month 5: mobilization coverage
- Month 6: observation-deadline / decision coverage

Real Media Dynamics (Peruvian grounding)

- **Investigation reframes a project:** sustained investigative reporting on extractive projects — enforcement records, ownership chains, lobbying — has repeatedly shifted national debate; a project that arrives in Lima’s press as “the conflict where the study failed review” fights uphill ever after (Tía María’s UNOPS story has framed it for a decade).
- **A human story shifts politics:** a rice-farming family photographed in the valley the mine would overshadow, or a herding family at the lagoon the pit would drain, connects emotionally and moves congresistas who fear the optics.
- **Scientific credibility beats company claims:** an independent, reviewed analysis that contradicts the proponent’s optimistic study lets media write “the numbers don’t hold,” and evaluators take the observations seriously.

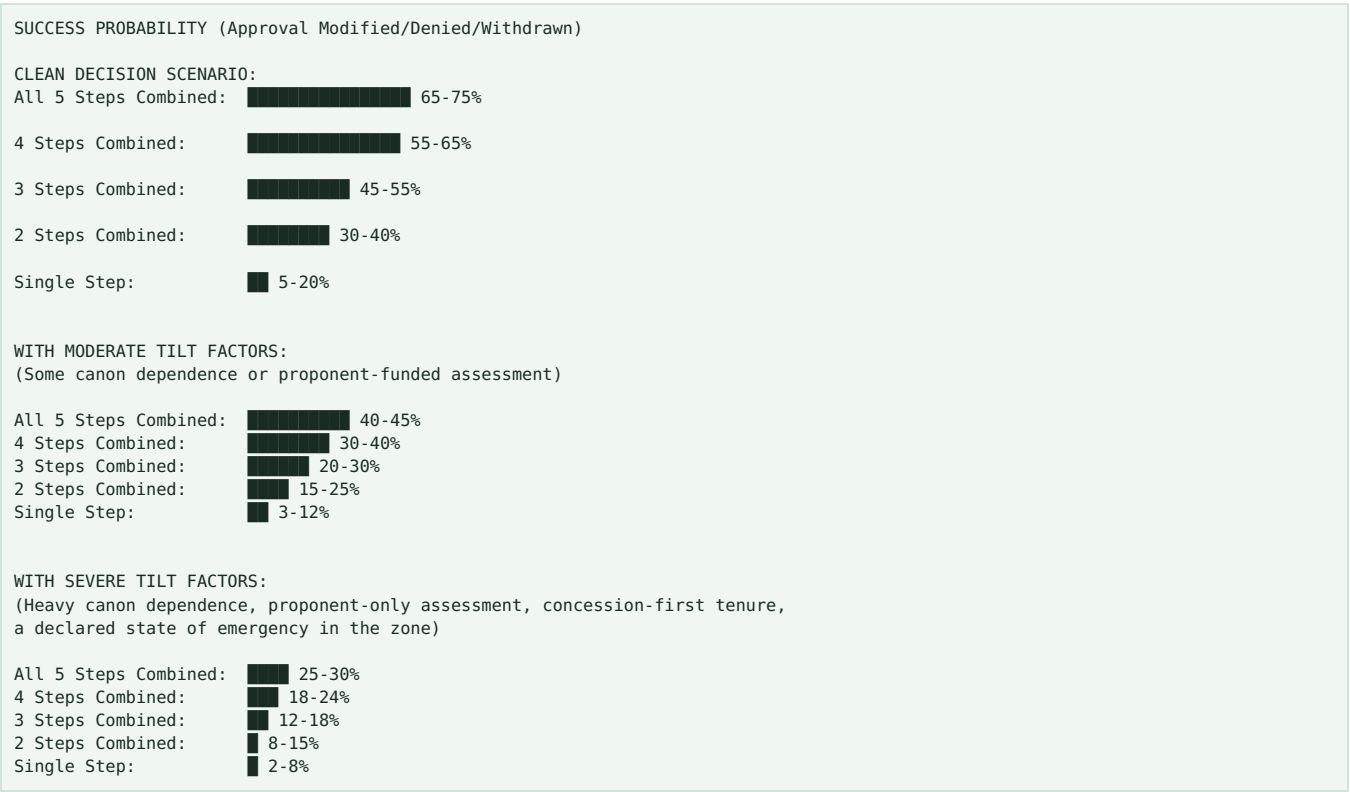
Media Measurement

Track cumulative stories, radio segments, and reach month over month. **Success indicators:** regular (at least monthly) coverage that carries your message and specific data, and visible decision-maker response. **Failure indicators:** no coverage for 2+ months, superficial coverage that omits your argument, or no decision-maker response.

HOW THE FIVE STEPS COMPOUND

Now that all five steps are on the table, here is how they stack — and which ones carry the most weight when combined.

Effectiveness Visualization



One important exception: where an indigenous or original people whose collective rights are affected leads a consulta previa challenge — or where an entire valley or region mobilizes in a sustained way, as in Cajamarca and the Tambo

Valley — these ceilings have been exceeded even against projects with full national-government backing, because the treaty obligation cannot be legislated away and because no mine can be built against a standing population.

Step Importance Ranking (When All Combined)

- | | | | |
|---------------------------------|------------------------|-----|---|
| 1. OPPOSITION BUILDING (Step 3) | <div><div></div></div> | 25% | Why: creates political pressure, visible to decision-makers, enables other steps |
| 2. DOCUMENTATION (Step 2) | <div><div></div></div> | 22% | Why: provides ammunition for legal/media, grounds opposition in facts |
| 3. MEDIA STRATEGY (Step 5) | <div><div></div></div> | 20% | Why: makes opposition/legal/documentation visible, creates political cost |
| 4. LEGAL CHALLENGES (Step 4) | <div><div></div></div> | 18% | Why: buys time, creates regulatory/court pressure – and in Peru holds the consulta previa lever |
| 5. TARGET ID (Step 1) | <div><div></div></div> | 15% | Why: foundation – if wrong, everything fails |

Real insight: a large, organized, visible community — the assembly, the ronda, the frente de defensa, standing together with the valley's producers and the national networks — is more persuasive than perfect documentation or brilliant legal arguments on their own. Every major Peruvian win was carried by organized territory first.

SECTION 8: EMAILS & LETTERS YOU CAN COPY

These are ready-to-use messages. Adapt the bracketed parts and send them. Keep them short, specific, and factual — that is what gets read and acted on. File anything addressed to a public entity at its **mesa de partes** (physical or virtual) and keep the stamped **cargo** — in Peru, the cargo is your proof the record exists. The legal-challenge letter and press release are kept here as 8F and 8G.

8A. Email to a reporter (story pitch)

```
Subject: Story tip: [specific finding] – decision due [date]

Hi [Reporter first name],

I follow your coverage of [beat / recent story]. We have something in [place]
your readers should know about, and there's a clear news hook.

In one line: [independent study / new record] shows [quantified finding – e.g.
"the proposed tailings site threatens the springs serving 4,000 people"], and
[Senace / the ministry / ANA] decides on [date].

Why it's newsworthy: it's new (just released), specific (affects [# people /
hectares / springs]), and time-sensitive (observations close [date]).

I can send the full study and connect you with [one named expert] for an
interview. Would a quick call this week work?

Thanks,
[Name] – [Organization] – [phone] – [email]
```

8B. Email / letter to a decision-maker

Subject: Please [declare the study inadmissible / impose conditions] on [project] – [file no.]

Dear [Alcalde / Consejero Regional / Gobernador / Congresista / Minister] [Name],

I am a resident of [community/district] writing about [project], file [number], before [Senace / MINEM / ANA / the regional government], with a decision expected [date].

The concern, briefly: [one or two specific, quantified harms – e.g. "the study's water balance ignores the dry-season flows of the springs registered to our junta de regantes, and the proponent's own filing admits [quote]"].

I am asking you to [specific, achievable action – e.g. "formally request that Senace declare the study inadmissible on water-balance grounds," or "support binding conditions: relocation of the tailings facility out of the watershed, a [S/ 80M] closure guarantee, and an independent community-led monitoring committee with public data"].

[If true:] [#] residents have signed a petition to this effect, and these organizations share the position: [list].

I would welcome a meeting and can provide our full documentation.

Respectfully,
[Name], [community/district], [DNI], [phone], [email]

8C. Public comment submission (observations to the evaluator)

Subject: Observations – [project name], [file number]

To: [Senace, via the EVA platform / the sector ministry / the regional government], [mesa de partes – keep the cargo]

Re: Observations on the [DIA / EIA-sd / EIA-d] of [project], file [number]. Observation window closes [date].

1. Who I am: [name / organization / community / junta de regantes], [district], [interest in the project].
2. Specific observations, with evidence:
 - a. [Observation – e.g. cumulative effects]. The study [omits / underestimates] this. Evidence: [your baseline / monitoring-committee data; the study's own admission, quoted]. This breaches [the SEIA regulation's content requirements / the ECA standard for category X water / the terms of reference].
 - b. [Observation 2 – springs inventory, dry-season balance, health]. Evidence: [...].
3. What I am asking for: [that the study be declared inadmissible on [issue] and returned; OR that these binding conditions be imposed: [list]].

Please confirm receipt, register these observations in the file, and answer each one individually as the evaluation report must.

[Name] – [Organization] – [DNI] – [contact]
Attachments: [baseline report / impact analysis / health-economic analysis]

8D. Coalition outreach email (to an organization)

Subject: [Organization] + [project] – a specific ask that fits your mission

Hi [Leader name],

I'm [name] with [group] in [community]. We're working on [project], which [one-line stake]. I'm reaching out because this connects directly to [organization]'s work on [their mission / issue].

We're not asking you to adopt our whole campaign – just one concrete thing that serves your mission: [tailored ask – e.g. "a hydrological review of the study," or "observations filed as the legally recognized water users by [date]," or "co-leading the health message"].

If helpful, I can send a one-page brief and hop on a 20-minute call.

Thanks for considering it,
[Name] – [Organization] – [contact]

8E. Records request (Law 27806 — access to public information)

Subject: Solicitud de acceso a la información pública – [project]

To: [the entity's designated information officer / mesa de partes]

Under the Law of Transparency and Access to Public Information (Law 27806), I request the following information concerning [project / file number]:

- correspondence between [the entity] and [proponent], [date] to [date];
- the complete environmental study and its annexes, and the evaluators' observation reports;
- records of meetings between [officials] and [proponent];
- [any specific document you know exists – the convenio with the police, the supervision reports, the water-balance annex].

The law gives you 10 working days to respond. Please provide records electronically. If any record is withheld, cite the specific statutory exception. An unjustified denial is appealable to the Transparency Tribunal.

[Name] – [DNI] – [address] – [email]

8F. Legal challenge skeleton (administrative appeal / amparo)

NOTE: In Peru most challenges run through (1) the entity's own appeals (reconsideración within 15 working days; apelación) and then the CONTENCIOSO-ADMINISTRATIVO courts, or (2) an ACCIÓN DE AMPARO for violation of constitutional rights – generally within 60 WORKING DAYS. Deadlines are SHORT – confirm the exact window with counsel immediately. The organizations named in Step 4 act free of charge.

[ADMINISTRATIVE APPEAL / DEMANDA DE AMPARO] AGAINST [DECISION]
[Date]

TO: [The entity / the constitutional judge] – RE: [decision], [file / resolution no.], dated [date]

APPLICANT: [Community / organization / individual / (or supporting an affected people, which leads)]

Contact: [Name, DNI, phone, email, address]

Standing: [directly affected] OR [defense of diffuse environmental interests / communal rights]

DECISION UNDER CHALLENGE: decision-maker; what was approved; date; deadline.

GROUND(S):

1. [Regulatory defect] – e.g. "the study fails to analyze cumulative effects as the SEIA regulation requires; observations [nos.] were never answered." Provision: "[cite]." The record shows: "[quote / the study's own admission]."
2. [Procedural defect] – required participation vs. what actually happened (talleres not held in the zone; audiencia without interpretation; the observation window cut short).
3. [Consulta previa] (where applicable, led by the affected people) – the measure affects collective rights and was adopted without the consultation required by ILO Convention 169 and Law 29785.
4. [Constitutional rights] – the right to a balanced and adequate environment (art. 2(22)); communal property and autonomy (arts. 88-89); water.

RELIEF SOUGHT: annul the decision; order the process redone lawfully [with consultation / with the required analysis]; [if harm is imminent] a medida cautelar suspending works pending the outcome.

Signature / date

ATTACHMENTS: the resolution; the study (key pages); the observations and their cargos; applicable norms; supporting evidence; maps / photos.

8G. Press release (effective)

FOR IMMEDIATE RELEASE

[HEADLINE: make it NEWS, not opinion]
[Subtitle: consequence + timeliness]

[DATELINE: City / Date]

[LEAD – answer "why now?"]
[Local group] released [study / findings] today showing [specific finding] affecting [# of people / hectares / springs].

KEY FINDINGS

- [Quantified impact with citation]
- [Quantified impact with citation]
- [Quantified impact with citation]

[DIRECT QUOTE – specific, from a credible voice, not a slogan]
"[What the finding means]," said [Name, Title].

[CONTEXT – why it matters; comparison to a documented Peruvian case – e.g. the UNOPS review that returned 138 observations against the first Tía María study]

[DECISION POINT – create urgency]
[Senace / the ministry / ANA] decides on [date]. Observations close [date].

[CALL TO ACTION] To file an observation: [how]. For more: [contact].

CONTACT: [Name / Organization / Phone / Email]

ATTACHMENTS: full study, technical summary, methodology, maps, Q&A

8H. Legal strategy decision tree

See Step 4 for the full decision tree — Tracks 1-3, the budget branches, and the consulta previa path, which is often the strongest lever in Peru.

SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

What this means. A system is **tilted toward approval** when the bodies that decide on a project lean, in practice, toward approving it — because they depend on the industry’s money or jobs, rely on the proponent’s own information, or face strong political pressure to say yes. It rarely means anyone broke the law. Here is how it works — and how communities win anyway.

Important Caveat

This section describes patterns from documented Peruvian cases and public records — canon dependence, proponent-funded assessment, the “paquetazo” laws, police-company convenios, states of emergency, and the criminalization of protest. It is not a statistical claim about “X% of all decisions.” Read it as: “where these patterns appear, here is what happens and what it means for opposition.”

What This Tilt DOES (and DOESN’T DO)

DOES: create financial incentive for approval (canon, regalías, jobs, the national “destrabe” agenda); bias information (proponent-funded studies read optimistically); advantage well-resourced parties; and arm the state and proponents with **states of emergency, police convenios, and criminal complaints** against visible opposition, so that opposition on the ground carries real legal and physical risk for participants. **DOESN’T:** guarantee approval; make opposition impossible; eliminate the treaty-rank consultation obligation (which no decree can remove); or prevent delays, modifications, and political costs. The biggest projects stopped in modern Peru were stopped *in* this tilted system.

Analogy: a tilted system is like playing against a team that owns the referee. It makes winning harder, not impossible — so your strategy has to be sharper and more visible, so other observers see the bias.

Documented Peruvian Dynamics

The “paquetazo” (Law 30230, 2014). At the height of a “destrabe” push, Congress passed a package that — among other investment-promotion measures — temporarily slashed OEFA’s power to impose full fines, converting most sanctions into corrective measures for three years. Enforcement statistics dropped accordingly, and the law became the reference case for how quickly environmental institutionality can be weakened when growth politics demand it. **Lesson:** the rules

themselves are a battlefield; national networks fought the paquetazo publicly, and the sanctioning regime was later restored — vigilance at the level of *laws*, not just projects, is part of the work.

Concession-first tenure. INGEMMET grants mining concessions over community land through a registry process with no prior consultation — communities routinely discover from GEOCATMIN that their territory is already concessioned. Federations and communities continue to litigate and campaign for consultation at the concession stage. **Lesson:** the tenure system is built for the proponent; watching GEOCATMIN is your early-warning system, and the later choke points (certification, water, the assembly's land decision) are where the community's power actually bites.

Police convenios and states of emergency. Peruvian police units have lawfully provided paid security services to extractive companies under written **convenios**, and governments have repeatedly declared **states of emergency** suspending assembly rights in conflict zones (Cajamarca, Islay, the southern mining corridor). Protest has been met with lethal force: the Defensoría's registries document dozens of civilian deaths in social conflicts over the last two decades. **Lesson:** this is the hardest edge of the tilt. It is why this guide insists on documented, collective, lawful strategy, legal-defense preparation from day one, and international visibility — the cases where communities prevailed combined mass legitimacy with legal and media shields.

Canon dependence. Where a district's or region's budget depends heavily on canon transfers, local politicians face arithmetic that favours the project regardless of local sentiment — and proponents amplify it. Opposition still routinely wins delays, smaller footprints, and mitigation funds — and the consultation track remains available regardless.

Assessment Framework — Determine Your Situation

GREEN FLAG (low tilt): independent review of the study is achievable; the evaluator has returned studies before; a clear regulatory defect exists; no state of emergency or convenio in the zone; strong consultation footing. → 65-75% with all 5 steps. Proceed with standard opposition.

YELLOW FLAG (moderate tilt): proponent-funded study (independent review possible); high approval rate; canon dependence present; legal case arguable but not clear-cut. → 40-45% with all 5 steps; often win modifications even if not a refusal. Proceed; prepare for multiple outcomes; prioritize the consultation track and modifications.

RED FLAG (high tilt): national-priority project with "destrabe" backing; near-total approval rate; heavy canon dependence; police convenio or state-of-emergency history in the zone; challenge relies on interpretation. → 25-30% to stop; 50-60% to modify/delay. Decide whether delay/modification justifies the investment; lead with the consultation track and mass, disciplined, documented territorial legitimacy (the only combination that has beaten projects in this scenario); build power for the next fight.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

When legal and political paths are exhausted, some Peruvian communities have engaged in direct action — regional strikes (**paros**), road blockades, and occupations have marked the Conga, Tía María, and southern-corridor (Las Bambas) conflicts, at times paralyzing regions for weeks. This is descriptive of what has occurred, not guidance.

Documented consequences under Peruvian law: governments have answered with **states of emergency** (suspending freedom of assembly and movement), police and military deployment, and prosecutions — charges such as **disturbios**, **extorsión**, and obstruction of public services have been brought against participants and, notably, against leaders, with pre-trial detention sought in prominent cases. Protest policing has caused deaths and serious injuries, documented conflict by conflict in the Defensoría's reports. A record can affect employment and travel, and defense proceedings run for years even when they end in acquittal. Direct action has produced delays and decisive political pressure in documented cases, but on its own rarely stops a project permanently; combined with legal and organizing work it has been more consequential. Anyone weighing participation should understand these specific risks — including the state-of-emergency and criminal-charge patterns — and be connected to legal defense (IDL, FEDEPAZ, CNDDHH) **before**, not after.

A security-culture note — the aboveground/underground line. Security writers in the resistance literature draw one hard distinction that everyone weighing any form of action should understand. Everything in this guide — the filings, the coalitions, the hearings, the media work — is **aboveground** organizing, and it only works in the open: "There is no way to effectively do aboveground work and keep your identity hidden... Aboveground movements can only build numbers and public solidarity by being public, open, and expressing support of the movement" (dgrnewsservice.org/civilization/repression/an-introduction-to-security-for-activists-organizers-and-revolutionaries/). The same literature is equally blunt about the choice itself: "every person in a resistance movement must decide for her- or himself whether to be aboveground or underground. It is essential that this decision be made; to attempt to straddle the line is unsafe for everyone" (dgrnewsservice.org/resistance/organizational-structures-for-resistance-movements/). Whatever any individual decides, mixing the two modes endangers both that person and everyone organizing beside them — an aboveground campaign is safest, strongest, and most credible when it is exactly what it appears to be.

Honest Assessment

Where the system is tilted, opposition using legal and political methods has lower odds of an outright stop — but still reliably delays projects (often years), forces modifications and mitigation, imposes political cost, builds durable community power, and creates a record for appeals. And in Peru, the treaty-rank consultation obligation and the raw fact of territorial legitimacy mean that even nationally-backed projects have been stopped when communities held together. Neither scenario makes opposition futile — but in the red-flag scenario, protect your people as deliberately as you fight the project.

SECTION 10: WHEN IT'S ACTUAL CORRUPTION (AND HOW TO EXPOSE IT)

Section 9 covered a system **tilted toward approval** — pressures that are usually lawful. This section covers something narrower and more serious: **actual corruption** — the unlawful or unethical use of a public position for private benefit, or improper influence over a decision. In Peru it is not hypothetical: the Lava Jato/Odebrecht cases proved that the country's biggest infrastructure decisions were, for years, purchased. Where corruption exists it is both a wrong worth exposing and, strategically, a project's single greatest vulnerability. Handle it carefully: the same facts that can sink a project can expose you to a defamation (*querrela*) suit if you get them wrong.

How big is the problem? The most widely cited figure comes from the World Economic Forum: corruption costs at least **US\$2.6 trillion a year — about 5% of global GDP** — a figure cited before the UN Security Council. Because it is a percentage, the dollar amount grows with the world economy: applied to 2022 global GDP (~US\$101 trillion) it works out to roughly **US\$5 trillion a year**, and a January 2026 Baker Tilly analysis, with global GDP projected at ~US\$115 trillion for 2025, puts it at approximately **US\$5.75 trillion annually**. Roughly one dollar in twenty moving through the world's economy is lost to corruption — and infrastructure and extractives, Peru's Lava Jato lesson, are where it concentrates.

What counts as corruption (a spectrum from illegal to merely unethical)

- **Bribery and kickbacks** — money, jobs, or favours in exchange for a decision or a permit.
- **Undisclosed conflicts of interest** — a decision-maker with a hidden financial stake in the outcome (land near the site, shares in the proponent, a contract, a family member employed by the company).
- **The revolving door** — officials and the proponent's staff or consultants moving between each other; a former vice-minister now lobbying the ministry.
- **Improper gifts, travel, hospitality, or campaign contributions** flowing from a proponent to the people deciding its project.
- **Insider land speculation** — acquiring affected land using non-public knowledge of a coming decision or route.
- **Falsified or suppressed assessments** — a consultancy delivering a predetermined result, or officials burying adverse findings.
- **Procurement fraud, nepotism, and cronyism** — steering contracts or approvals to insiders (the classic Lava Jato pattern).
- **Improper pressure and undisclosed lobbying** — a technical recommendation quietly reversed after private contact.

Red flags to watch for

- A decision that overrides the technical evaluators' recommendation with thin or shifting reasons.
- Sudden reversals, rushed timelines, or an approval pushed through quietly (a resolution published in *El Peruano* at a strategic moment).
- A decision-maker who did not disclose a relevant interest, or who should have recused and didn't.
- Off-record meetings between the proponent and decision-makers.
- Donations, gifts, trips, or jobs flowing from the proponent (or its principals) to decision-makers or their families.
- A decision-maker — or a relative — owning affected land or a stake in the proponent.
- The same small circle of firms, consultants, and officials recurring across decisions.
- Missing minutes, unusual redactions, "lost" records, or stonewalling of Law 27806 requests.

How to document and investigate it (follow the money — carefully)

- **Law 27806 requests** for correspondence, calendars and visitor logs, consultant contracts, and internal assessments — and remember many entities' **visitor registries** are published online.
- **Public asset and interest declarations (*declaraciones juradas*)** that officials must file, searchable through the Contraloría's systems.

- **SEACE** (*seace.gob.pe*) — the state’s electronic procurement system — to see which firms win which contracts, for how much, from whom.
- **SUNARP** (*sunarp.gob.pe*) — the public registry — for who owns the affected land and the companies involved; corporate linkages trace through the registry and financial-market filings.
- **Minutes, agendas, and voting records** — compare the decision to the technical recommendation.
- **Build a timeline:** interest or relationship → meeting or donation → decision. Corruption is almost always shown by **pattern and timing**, not a confession.
- **Whistleblowers** often break these stories. Protect them; understand the whistleblower-protection rules before asking anyone to come forward.

The legal lever: bias can void a decision (even without proof of a bribe)

Peruvian administrative law requires impartiality: an official with a conflict must abstain, and a decision tainted by a decision-maker’s undisclosed interest or improper contact is challengeable — administratively and before the *contencioso-administrativo* courts — independent of any criminal proof. So documenting an undisclosed interest is not only a media story — it can be a **legal ground against the decision itself**, alongside the disciplinary and criminal exposure of the official.

Where to report it

- The **Contraloría General de la República** (audit findings, asset declarations, administrative liability).
- The **Ministerio Público’s anticorruption prosecutors** (and FEMA where the environmental crime and the corruption intertwine).
- The **Procuraduría Pública** specialized in corruption (the state’s own lawyer against corrupt officials).
- The entity’s **Órgano de Control Institucional (OCI)** — the Contraloría’s office inside each public body.
- The **Defensoría del Pueblo** for maladministration and rights violations.
- **Investigative outlets** — IDL-Reporteros, Ojo Público, Convoca — in parallel with the official channels.

Strategy: exposing a tainted process can beat a project

The clearest Peruvian example is the **Gasoducto Sur Peruano**. The multi-billion-dollar southern gas pipeline — a flagship national project — collapsed in January 2017 when its concession was terminated amid the **Odebrecht** corruption revelations engulfing its lead builder: financing evaporated, the contract fell, and the “inevitable” project died with it. More broadly, Lava Jato showed that exposure works in Peru at the highest level: contracts voided, executives and officials prosecuted, presidents investigated. A credible, documented corruption story triggers investigations; it can invalidate decisions; it flips media coverage; it splits the political support behind a project; and it destroys the proponent’s financing. **Exposing a tainted process is often more powerful than arguing inside it.**

Do this responsibly — and safely

- **Stick to documented facts.** Publish the records and the timeline and let readers draw conclusions; frame anything unproven as a question, not an accusation.
- **Mind defamation.** Publicly accusing a named person of a crime you cannot prove is legally dangerous in Peru — *difamación* is criminally actionable (*querrela*). Work with a lawyer and an experienced journalist before publishing allegations.
- **Report through official channels in parallel** with any media, so there is a formal record and an investigation can follow.
- **Protect whistleblowers and sources.**
- **Don’t cry “corruption” without evidence.** Calling ordinary, lawful bias (Section 9) “corruption” destroys your credibility and can expose you to suit. Keep the two separate — which is exactly why they are separate sections here.

Corruption Isn’t One Thing — Map It by Actor

The section above treats misconduct as one category. It usually sits in specific institutions, and which institution is compromised changes what you can rely on. Before staking a campaign on the courts, the hearing, or an audit body, assess how clean each actor in your project’s chain is — from your own knowledge, the reporting in the Watchdogs lens, and the country’s corruption record.

Rate each link, and note what capture tends to look like:

- **Planning commission / environmental authority (approves the project).** Signs: studies passed without scrutiny, conditions never enforced, a large project split into small pieces to dodge assessment. If this body is

compromised, the administrative route is weak — move earlier to the courts and to public pressure.

- **Local council / municipality.** Signs: rushed zoning changes, land deals, a mayor who is also the project's advocate. If the municipality is the problem, the higher level of government and the courts become the arena, and the conduct itself becomes evidence.
- **The judiciary (judges and clerks).** The decisive link. Where judicial processes are captured or routinely corrupt, a technically strong court argument still should not be expected to win — a compromised court can ignore precedent, delay an injunction until the site is cleared, or rule against the evidence. Where that is the reality, use litigation to buy time and build a record, and put the real weight on political cost, media, higher or appellate courts, and outside bodies (regional human-rights systems, international finance-standard complaints) beyond the local court's reach.
- **Police and prosecutors.** Signs: charges against protest leaders, silence on the developer's violations. This affects how you organise — assume protest may draw legal harassment, keep everything lawful and documented, and arrange defence counsel before you need it (see the security-culture note in the direct-action section).
- **Legislators / provincial or national government.** Signs: laws rewritten to favour a project, protections repealed, "strategic project" designations that fast-track approval. When the rules themselves are being changed, defending the existing law — and any non-regression principle — becomes the fight.
- **Federal / national agencies.** Signs: a permit issued over the technical staff's objections, an inspectorate that does not inspect. If the national regulator is compromised but the courts or an audit body are not, route around it.
- **The developer and its consultants.** The private side: a study written to a set conclusion, undisclosed ties between an "independent" consultant and the proponent, movement of staff between company and regulator. This link is often the most documentable, and exposing it can undo a decision the public bodies would not have questioned.

Rate each actor green (reliable), yellow (compromised, use with caution), or red (captured — do not stake the campaign on it), then aim at the cleanest remaining lever. A captured planning commission with clean courts points to litigation; clean media with everything else compromised points to a public and political fight whose aim may be to raise the cost and build a record for the next project. Where the capture involves unlawful conduct, it is no longer only a barrier — it is the corruption case in the section above, and often the project's greatest vulnerability.

INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

Realistic 12-Month Campaign Timeline

Months 1-2 — Foundation + Documentation: identify the target (Step 1); begin baseline and form the monitoring committee (Step 2); begin organizing one-on-ones and affinity groups, convene the assembly (Step 3); attend the talleres, file early requests under Law 27806, first reporter calls (Steps 4-5). *Outcome:* structure forming, record beginning.

Months 2-3 — Public Launch: baseline complete; community forum + petition (Step 3); media event (Step 5). *Outcome:* opposition visible, 500+ signatures, 3-5 stories, the conflict entering the Defensoría's monthly report.

Months 3-4 — Coalition + Impact Analysis: complete impact analysis (Step 2); expand the frente to 5-10 organizations (Step 3); file observations through EVA at the audiencia window, and support the consulta previa track where collective rights are engaged (Step 4); data-release press conference (Step 5). *Outcome:* broad coalition, observations on the record, coverage expanding.

Months 4-6 — Expansion + Health Data: health/economic report (Step 2); sustained monthly mobilization (Step 3); administrative appeals prepared, SINADA/ANA complaints accumulating (Step 4); expert pressers and radio (Step 5). *Outcome:* 10+ organizations, quantified impacts, regional media.

Months 6-9 — Escalation + Litigation: mobilization escalating with discipline (Step 3); amparo/contencioso and medida cautelar if the decision issues, consultation case proceeding (Step 4); ongoing monthly media (Step 5). *Outcome:* sustained pressure, court process live.

Months 9-12 — Peak Pressure + Positioning: maintain opposition (Step 3); hearings/dialogue-table/redo positioning (Step 4); media momentum (Step 5). *Outcome:* legal + opposition + media compound; conditions, inadmissibility, redo, or withdrawal.

Warning Signs — Act Early

Watch for these and respond fast: attendance declining around months 4-5 (burnout); frente members negotiating individually with the proponent (the classic split); no media coverage for 2-3 months (media strategy failing); the legal challenge stalling; fundraising below half your target by month 6; a core organizer leaving without a successor; criminal complaints arriving against leaders (activate the legal-defense relationship immediately); or someone new pushing violence. Each has a fix earlier in this guide — catch it early and the campaign holds.

Key Principles (What Separates Winning Campaigns from Losing Ones)

1. **Specificity** — “declare the study inadmissible on water-balance grounds before the observation window closes,” not “we oppose the mine.”
 2. **Multi-tactic pressure** — legal + opposition + media together, not one alone.
 3. **Long-term organizing** — sustain 12+ months; prevent burnout; work with the agricultural calendar.
 4. **Documentation first** — build the evidence, then organize and litigate on it (Tía María’s lesson).
 5. **Coalition building** — 5-10 diverse organizations, no separate deals, and respectful alliance with the affected peoples.
 6. **Political pressure, not just legal** — law buys time; opposition and media create political cost.
 7. **Use the treaty lever** — where collective rights are engaged, consulta previa is often the strongest card, led by the affected people.
 8. **Protect your leaders** — collective documented decisions, rotating spokespeople, legal defense arranged before it’s needed.
 9. **Realistic expectations** — expect conditions/modifications/delay; a refusal or withdrawal is the bonus.
 10. **Persistence** — plan for 12-24 months and keep momentum; the Tambo Valley has held for over a decade.
-

FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

Real Outcomes: What Winning Looks Like

- **Approval refused / project withdrawn** (rarer): usually requires overwhelming opposition + a strong legal or consultation case + heavy media. Peruvian examples of “inevitable” projects that ended or froze: **Conga** (suspended indefinitely, 2012), **Tía María’s first EIA** (withdrawn after the UNOPS review, 2011 — and the project still unbuilt), **Santa Ana** (authorization revoked, 2011), **Río Blanco** (stalled for two decades after community consultations rejected it). (*Sobering coda: the Santa Ana revocation later cost Peru an investor-arbitration award to Bear Creek — proponents fight on after the ground fight ends, which is the state’s problem, not the community’s.*)
- **Project modified** (most common victory): relocated components, smaller footprint, buffers, binding conditions, monitoring committees with public data, closure guarantees — frequently via a **mesa de diálogo** (a state-convened dialogue table) the conflict forces into existence.
- **Delay / attrition**: stalled for years while legal and political battles proceed; financing and investor confidence erode; the proponent sometimes walks away or sells.
- **Defeat**: the project proceeds. Focus then shifts to compliance monitoring (SINADA, the monitoring committee, OEFA), the next legal opening (every MEIA modification reopens windows), and stewardship.

Why It’s Worth It — Even If You Ultimately Lose

Be honest with your community about the odds — and equally honest about what the “secondary” outcomes are actually worth, because they are not consolation prizes:

- **Conditions and monitoring protect bodies for decades.** A relocated tailings facility, a closure guarantee, a community monitoring committee with public data — these are measured in children’s blood-lead levels and dry-season spring flow, for the life of the mine. Cerro de Pasco and La Oroya are what unconditioned extraction does; every condition you force is that future partially averted.
- **Delay is real harm avoided — and real leverage.** Every year a project stalls is a year the valley farms and the springs run; and delay compounds against the proponent: financing costs, expiring permits, souring investors, changing governments. Several “delayed” Peruvian projects simply never came back.
- **The organization outlives the fight.** The frente, the monitoring committee, the trained observers, the relationship with lawyers and journalists — that infrastructure fights the next concession, the water licence renewal, the MEIA. Cajamarca’s rondas and the Tambo Valley’s networks are permanent civic capacity built by campaigns that “only” won suspensions.
- **You change the rules for everyone.** The paquetazo was rolled back because networks fought at the level of law; Bagua’s aftermath produced the consultation statute itself. Campaigns lose projects and win legal architecture the whole country then uses.
- **You raise the price of the next project.** A proponent that spent years and millions fighting your valley prices the next community’s resistance into every plan — and sometimes walks away before starting. Deterrence is invisible and real.
- **Compensation and dignity are not nothing.** Where harm proceeds, documented cases win remediation, compensation, and services a silent community never sees — and a community that has organised once is better

prepared the next time.

Decision Point: Continue, Modify, or Reassess

Continue if the legal challenge is on schedule, opposition is holding or growing, media is at least monthly, the frente is stable, and the decision is more than three months out. **Modify** if attendance is declining, coverage has dropped for 2+ months, member organizations are negotiating separately, the legal challenge has stalled, or you discover the system is more tilted than assessed. **Reassess** if, after ~12 months, legal and political options are exhausted, the decision appears settled despite real effort, the community is exhausted, or resources are depleted. In reassessment, ask: has opposition already won partial victory (modifications, delay, a monitoring regime)? Would continued effort win more, or just prolong the fight? Should energy shift to monitoring compliance, to the next decision (the water licence, the MEIA), or to broader systemic change (the concession system, the paquetazos)?

The Bottom Line

Opposition work can stop or significantly modify destructive projects in Peru — even where parts of the system are tilted toward approval, and even against projects carrying the full weight of national economic policy. Opposition creates multiple, compounding forms of pressure: legal, political, media, and community. Where the tilt is severe, an outright stop is less likely, but opposition still delivers delays, modifications, political costs, and durable power.

And Peruvian law provides a powerful floor: treaty-rank protection for the collective rights of indigenous and original peoples that no decree can remove, constitutional protection for communal land, and an assembly whose supermajority no company can conjure. Time and again, determined communities — the Tambo Valley's farmers, Cajamarca's rondas, Puno's aymara communities, the Amazonian federations — have stopped what was supposed to be unstoppable.

Know your situation. Assess how tilted the system is, honestly — including the physical risks. Choose your strategy accordingly. Then organize — with eyes open to both the possibilities and the barriers.

Nothing here is legal advice. The consultation and criminalization landscape evolves quickly — every organization named in this guide gives current advice; ask them before relying on any deadline or doctrine.